

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JAMES TERRY,

Plaintiff,

-against-

SUMMONS

DETECTIVE JULIO LASALLE, Tax # 936912,
SERGEANT JACK SINATRA, Tax # 921771,
DETECTIVE ROBERT LOCHER, Tax # 938866,
DETECTIVE BRIAN TAYLOR, Tax # 933403, POLICE
OFFICER JUSTIN PARRIS, Tax # 937249, DETECTIVE
NEIL MAGLIANO, Tax # 937003, DETECTIVE RYAN
FOY, Tax # 940155, POLICE OFFICER JENNIFER
SMITH, Tax # 933366, CAPTAIN GURLEY,
LIEUTENANT MORALES, DETECTIVE CLEARY,
POLICE OFFICER AYALA, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present),

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 17, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 1000

TO: DETECTIVE JULIO LASALLE, Tax # 936912, Manhattan Gang Squad
SERGEANT JACK SINATRA, Tax # 921771, Manhattan Gang Squad
DETECTIVE ROBERT LOCHER, Tax # 938866, Manhattan Gang Squad
DETECTIVE BRIAN TAYLOR, Tax # 933403,
POLICE OFFICER JUSTIN PARRIS, Tax # 937249, Manhattan Gang Squad
DETECTIVE NEIL MAGLIANO, Tax # 937003, Manhattan Gang Squad
DETECTIVE RYAN FOY, Tax # 940155, Manhattan Gang Squad
POLICE OFFICER JENNIFER SMITH, Tax # 933366, Patrol Bureau Manhattan South
Anticrime Unit
CAPTAIN GURLEY, Manhattan Gang Squad
LIEUTENANT MORALES, Manhattan Gang Squad
DETECTIVE CLEARY, Manhattan Gang Squad
POLICE OFFICER AYALA, Manhattan Gang Squad

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

JAMES TERRY,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

DETECTIVE JULIO LASALLE, Tax # 936912,
SERGEANT JACK SINATRA, Tax # 921771,
DETECTIVE ROBERT LOCHER, Tax # 938866,
DETECTIVE BRIAN TAYLOR, Tax # 933403, POLICE
OFFICER JUSTIN PARRIS, Tax # 937249, DETECTIVE
NEIL MAGLIANO, Tax # 937003, DETECTIVE RYAN
FOY, Tax # 940155, POLICE OFFICER JENNIFER
SMITH, Tax # 933366, CAPTAIN GURLEY,
LIEUTENANT MORALES, DETECTIVE CLEARY,
POLICE OFFICER AYALA, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff JAMES TERRY, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 18, 2015 at approximately 9:45 p.m. plaintiff James Terry was lawfully present watching television inside of 388 Pearl Street, 5F, New York, New York 10038, when defendants raided the apartment and subjected plaintiff to a false arrest, false imprisonment, and excessive force. Plaintiff was unlawfully seized, falsely arrested and falsely imprisoned, and unlawfully detained at the PSA 4 Precinct and at New York County Central Booking until February 20, 2015 at 6:20 pm at which time plaintiff was arraigned in New York County Criminal Court. Thereafter, plaintiff was denied the right to due process and the right to a fair trial and maliciously prosecuted by the defendant police officers. At arraignment, plaintiff falsely charged with committing crimes he did not commit and for which the defendants lacked

probable cause to accuse him of committing, plaintiff was unable to post bail and he was remanded into NYC DOC custody and Detained at the Manhattan Detention Center until February 24, 2015 at 1:05 pm at which time he was released from custody on his own recognizance. On April 1, 2015 the Manhattan District Attorney's Office moved to dismiss all charges brought against plaintiff because it could not meet its burden of proof and the Court dismissed and sealed all charges brought against plaintiff in their entirety. Plaintiff was deprived of his constitutional and common law rights when the individual defendants falsely arrested and falsely imprisoned plaintiff, subjected plaintiff to the use of excessive force, maliciously prosecuted plaintiff, and denied plaintiff the right to due process/ a fair trial, and in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff James Terry is a resident of the state of New York.
3. Defendant DETECTIVE JULIO LASALLE, Tax # 936912, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. Defendant DETECTIVE JULIO LASALLE, Tax # 936912, is and was at all times relevant herein, assigned to the Manhattan Gang Squad.
5. Defendant DETECTIVE JULIO LASALLE, Tax # 936912 is being sued in his individual and official capacity.
6. Defendant SERGEANT JACK SINATRA, Tax # 921771, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. Defendant SERGEANT JACK SINATRA, Tax # 921771, is and was at all times relevant herein, assigned to the Manhattan Gang Squad.
8. Defendant SERGEANT JACK SINATRA, Tax # 921771 is being sued in his individual and official capacity.
9. Defendant DETECTIVE ROBERT LOCHER, Tax # 938866, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. Defendant DETECTIVE ROBERT LOCHER, Tax # 938866, is and was at all times relevant herein, assigned to the Manhattan Gang Squad.
11. Defendant DETECTIVE ROBERT LOCHER, Tax # 938866 is being sued in his individual and official capacity.
12. Defendant DETECTIVE BRIAN TAYLOR, Tax # 933403 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. Defendant DETECTIVE BRIAN TAYLOR, Tax # 933403 is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

14. Defendant DETECTIVE BRIAN TAYLOR, Tax # 933403 is being sued in his individual and official capacity.

15. Defendant POLICE OFFICER JUSTIN PARRIS, Tax # 937249 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. Defendant POLICE OFFICER JUSTIN PARRIS, Tax # 937249 is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

17. Defendant POLICE OFFICER JUSTIN PARRIS, Tax # 937249 is being sued in his individual and official capacity.

18. Defendant DETECTIVE NEIL MAGLIANO, Tax # 937003 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant DETECTIVE NEIL MAGLIANO, Tax # 937003 is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

20. Defendant DETECTIVE NEIL MAGLIANO, Tax # 937003 is being sued in his individual and official capacity.

21. Defendant DETECTIVE RYAN FOY, Tax # 940155 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

22. Defendant DETECTIVE RYAN FOY, Tax # 940155 is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

23. Defendant DETECTIVE RYAN FOY, Tax # 940155 is being sued in his individual and official capacity.

24. Defendant POLICE OFFICER JENNIFER SMITH, Tax # 933366 is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

25. Defendant POLICE OFFICER JENNIFER SMITH, Tax # 933366 is and was at all times relevant herein, assigned to the Patrol Bureau Manhattan South Anticrime Unit.

26. Defendant POLICE OFFICER JENNIFER SMITH, Tax # 933366 is being sued in his individual and official capacity.

27. Defendant CAPTAIN GURLEY is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

28. Defendant CAPTAIN GURLEY is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

29. Defendant CAPTAIN GURLEY is being sued in his individual and official capacity.

30. Defendant LIEUTENANT MORALES is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

31. Defendant LIEUTENANT MORALES is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

32. Defendant LIEUTENANT MORALES is being sued in his individual and official capacity.

33. Defendant DETECTIVE CLEARY is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

34. Defendant DETECTIVE CLEARY is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

35. Defendant DETECTIVE CLEARY is being sued in his individual and official capacity.

36. Defendant POLICE OFFICER AYALA is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

37. Defendant POLICE OFFICER AYALA is and was at all times relevant herein, assigned to the Manhattan Gang Squad.

38. Defendant POLICE OFFICER AYALA is being sued in his individual and official capacity.

39. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

40. Police Officers John Does #1-4 are being sued in their individual and official capacities.

41. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant

herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

42. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

43. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

44. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

45. By way of background, on February 18, 2015 plaintiff visited his friend Thomas and Thomas' mother, Jeanie, at the apartment where they were living at the time, located at 388 Pearl Street, Apt. 5F, New York New York.

46. On February 18, 2015 at approximately 9:45 pm, plaintiff was with Jeanie, lawfully sitting in Thomas' bedroom watching television when defendants forcefully entered the apartment through the front door with their guns drawn and ordered everyone inside of the apartment to freeze and to get on the floor.

47. Plaintiff complied with the orders given by defendants, but while plaintiff was laying face down on the ground the officers used excessive force against him by kicking him repeatedly in his back and all over his body, causing pain all over his body, without any legal justification to use such force against plaintiff.

48. At no time relevant herein did plaintiff resist being arrested.

49. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did defendants have an objective factual basis to believe he committed a crime or violated the law.

50. At no time relevant herein did defendants have probable cause to arrest or prosecute plaintiff for committing a crime or violating the law in any way.

51. The defendants unlawfully searched plaintiff and unlawfully handcuffed him without legal justification.

52. Plaintiff told the officers that he did not live in the apartment and that he was just visiting Thomas and Jeanie. Furthermore, plaintiff showed the officers his government issued identification card which contained his home address and established for the officers that plaintiff did not live in that apartment.

53. Defendants searched the apartment for approximately 20 minutes.

54. Defendants did not recover any illegal drugs, weapons or contraband from plaintiff's person or from his possession, custody or control.

55. After defendants finished searching the apartment they falsely arrested/imprisoned plaintiff, without probable cause or legal justification.

56. The defendants provided the New York County District Attorney's Office with a false, misleading, and incomplete description of the facts and evidence in their possession that the officers used to purportedly establish probable cause to arrest and prosecute plaintiff.

57. Specifically, defendants intentionally neglected to inform the District Attorney's Office that plaintiff did not live at the location where he was arrested and that all illegal drugs, weapons, and contraband allegedly recovered from the apartment was recovered from the personal belongings of individuals that lived in the apartment and defendants lacked any factual basis to allege that plaintiff had possession or constructive possession of any contraband recovered from the apartment.

58. Defendants falsely arrested plaintiff and transported him to the PSA 4 precinct.

59. Defendants unlawfully searched, fingerprinted and photographed plaintiff at the PSA4 precinct and unlawfully detained plaintiff in a holding cell containing rodents and insects for many hours.

60. After many hours plaintiff was transported to New York County Central Booking where he was detained in several large holding cells with other prisoners accused of committing various crimes.

61. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint filed against plaintiff, defendants maliciously initiated a criminal prosecution against plaintiff without probable cause on February 20, 2015.

62. On February 20, 2015 at 6:20 pm plaintiff was arraigned in New York County Criminal Court and charged with serious crimes that he did not commit and for which the officers lacked probable cause to accuse him of committing, including but not limited to Criminal Possession of a Weapon in the Second Degree (PL 265.03(1)(b)), Criminal Possession of a Controlled Substance in the Seventh Degree (PL 220.03), and Criminal Possession of Marijuana in the Fifth Degree (PL 221.10(2)).

63. At arraignment bail was set at \$35,000, plaintiff could not post bail and he was remanded into New York City Department of Correction custody and unlawfully detained in the Manhattan Detention Center until February 24, 2015 at 1:05 pm when plaintiff was released on his own recognizance.

64. On April 1, 2015 the criminal charges were dismissed and sealed in their entirety and terminated in plaintiff's favor after the court granted the motion to dismiss the charges made by the District Attorney's Office because it did not have evidence to meet their burden of proof to prosecute plaintiff.

65. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the false arrest, false imprisonment, excessive force, malicious prosecution, and denial of the right to due process/ fair trial.

66. The false arrest, false imprisonment, excessive force, malicious prosecution, and denial of the right to due process/ fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

68. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, seized, , falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to due process and the right to a fair trial, without probable cause or any other legal justification in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

76. Defendants lacked probable cause to search plaintiff.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

80. Plaintiff repeats and realleges paragraphs 1 through 79 as if fully set forth herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Right to Due Process/ Fair Trial

87. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 86 with the same force and effect as if fully set forth herein.

88. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

89. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

90. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

91. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

92. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The use of excessive force by defendants by repeatedly kicking plaintiff's back and other areas of his body while he was laying face down on the ground was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

96. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

99. Defendants failed to intervene to prevent the unlawful conduct described herein.

100. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

102. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff James Terry demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 17, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
February 17, 2018

/s/

STUART E. JACOBS